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7 SUPERIOR COURT OF THE STATE OF WASHINGTON
8 FOR KING COUNTY

9 VIKTORIA TITOVA, an individual
10 EMERALD BALLET ACADEMY, LLC, a
Washington limited liability company,

11 Plaintiffs,

12 v.

13 EMERALD BALLET THEATRE, AKA
14 BELARTS BALLET, a Washington non-
profit corporation,

15 Defendant.

NO.

COMPLAINT

16 Plaintiffs Viktoria Titova (“Titova”) and Emerald Ballet Academy, LLC (“Ballet
17 Academy”) (collectively, “Plaintiffs”), in support of this Complaint against Defendant Emerald
18 Ballet Theatre d/b/a BelArts Ballet (“EBT” or “Defendant”), do hereby allege as follows:

19 **I. PARTIES**

20 1.1. Plaintiff Viktoria Titova is an individual residing King County, Washington. Titova
21 founded both Plaintiff Emerald Ballet Academy, LLC, and Defendant Emerald Ballet Theatre.

22 1.2. Plaintiff Emerald Ballet Academy, LLC, is a Washington State limited liability
23 company with its principal place of business at 655 156th Avenue Southeast, Suite A 355, Bellevue,
24 Washington 98007.

1.3. Defendant Emerald Ballet Theatre, d/b/a BelArts Ballet, is a Washington State non-profit corporation with its principal place of business at 12340 Northup Way, Bellevue, Washington 98005.

II. JURISDICTION AND VENUE

2.1 The Superior Court has original jurisdiction in this matter pursuant to RCW 2.08.010.

2.2 Venue is proper in King County under RCW 4.12.020 and RCW 4.12.025 because EBT resides in and conducts business in this County and the causes of action arose here.

III. FACTS

Titova Founds and Works for Non-Profit Emerald Ballet Theatre

3.1 Viktoria Titova is a Bolshoi Ballet-trained ballerina. In addition to being a world-class performer, she is a dynamic choreographer and a dedicated teacher.

3.2 On or about March 28, 2007, Titova founded Emerald Ballet Theatre (“EBT”), a 501(c)(3) nonprofit corporation organized under the laws of the State of Washington and dedicated to the performing arts, specifically dance, with the purpose of promotion, preservation, and advancement of the art form of ballet.

3.3 Since EBT’s founding in 2007 and until June 2024, Titova served as EBT’s Artistic Director and Executive Director and as a director and President of EBT’s board of directors.

3.4 Since EBT’s founding in 2007 and until June 2024, Titova performed substantial day-to-day work for EBT, including administrative activities, managing the organization’s financial accounts, community outreach, fundraising, staff training, recruiting, and producing ballet performances.

3.5 In her capacity as Executive Director and Artistic Director, Titova reported to the board of directors, and she consulted with the board of directors about major decisions she sought to make on behalf of EBT.

3.6 Despite functioning as an employee, EBT misclassified Titova as an independent

1 contractor.

2 3.7 EBT paid Titova less than \$17,000 a year between 2021 and 2024, well below both
3 exempt salary thresholds and minimum wage requirements under Washington law.

4 **Titova Creates a School, the Emerald Ballet Academy**

5 3.8 On or about June 21, 2010, Titova founded Emerald Ballet Academy, LLC (“Ballet
6 Academy”), a limited liability company organized under the laws of the State of Washington, to
7 serve as a ballet school and teach ballet.

8 3.9 The Ballet Academy operates independently of EBT.

9 3.10 Since 2010 and through the present, Titova has served as owner, Artistic Director,
10 and Ballet Master for the Ballet Academy. Under her leadership, the Ballet Academy has grown
11 into one of the premiere ballet academies in the Seattle metropolitan region.

12 3.11 During the time Titova led both the Ballet Academy and EBT, Ballet Academy
13 students performed in EBT-produced performances several times a year.

14 3.12 During the time Titova led both the Ballet Academy and EBT, EBT did not operate
15 a ballet school.

16 **EBT Wrongfully Terminates Titova and Removes Her from EBT’s Board**

17 3.13 On or about June 1, 2024, EBT, by and through some of its directors, called a
18 special meeting of the board to take place on June 4, 2024.

19 3.14 On or about June 1, 2024, an agenda was proposed for the special meeting of the
20 EBT board. Neither the agenda nor any other notice was given that one of the purposes of the
21 meeting would be removal of a director.

22 3.15 On or about June 4, 2024, Titova, in her capacity as EBT Board President,
23 confirmed that she would preside over the June 4, 2024 special meeting.

24 3.16 On or about June 4, 2024, Titova added to the proposed agenda for the scheduled
25 special meeting of the EBT board. In particular, she sought to have the board discuss a conflict of
26 interest one of the board members had regarding decisions affecting Titova given that the board

1 member's daughter stood to benefit professionally from changes to Titova's roles with EBT.
2 Titova also requested that she be allowed to have an interpreter present to assist her at important
3 board meetings, as English is not her first language.

4 3.17 The EBT board met for the scheduled special meeting on the evening of June 4,
5 2024, and then reconvened to continue discussion on the morning of June 5, 2024.

6 3.18 On or about June 5, 2024, during the continued special meeting of the EBT board,
7 a motion was made to remove Titova from all roles she held with EBT.

8 3.19 Immediately prior to the EBT board's vote to remove Titova from all of her
9 positions with EBT, the board was notified that the removal vote was unlawful under applicable
10 Washington law. The board nonetheless proceeded with the unlawful removal vote.

11 3.20 Titova did not participate in the removal vote.

12 3.21 The board member with the conflict of interest that Titova raised was permitted by
13 the board to and did participate in the removal vote.

14 3.22 On or about June 5, 2024, EBT, by and through its directors, abruptly, intentionally,
15 and wrongfully removed Titova from the EBT board, without lawful cause, due process,
16 compliance with RCW 24.03A.530, or compliance with EBT's bylaws.

17 3.23 At the same time and through the same vote by which the EBT board removed
18 Titova from the board, EBT, by and through its directors, terminated Titova from her roles as
19 Artistic Director and Executive Director of EBT.

20 **EBT's Wrongful Conduct Against Ballet Academy**

21 3.24 Following Titova's wrongful termination, EBT engaged in multiple intentional acts
22 of wrongful conduct that have harmed Titova and EBA, including but not limited to an
23 unauthorized takeover of QuickBooks in August 2024 that locked out Titova and the Ballet
24 Academy during a peak registration season, and that enabled EBT, which was launching a
25 competing school, to gain unauthorized access to confidential and proprietary information of the
26 Ballet Academy.

1 3.25 EBT's further intentional misconduct included improperly denying Titova access
2 to records and property to which she had rights and interests; a Vimeo takedown of the Ballet
3 Academy's paid *Nutcracker* promotional video days before the Ballet Academy's show;
4 improperly freezing ticket sales proceeds in December 2024; active solicitation of EBA teachers
5 and students and intentional interference with the Ballet Academy's contractual relationships
6 and/or business expectancies with such teachers and students; and an attempted improper seizure
7 via misrepresentations regarding the emeraldballet.org domain owned by Titova.

8 **IV. FIRST CAUSE OF ACTION: WRONGFUL TERMINATION**

9 4.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
10 the Paragraphs above.

11 4.2 RCW 24.03A.530(2)(b) requires that a nonprofit board provide at least 48 hours'
12 notice before a board meeting to consider removing a director, and further requires that the notice
13 expressly specify that the purpose, or one of the purposes, of the meeting is removal of a director.

14 4.3 On or about June 5, 2024, EBT's board of directors held a special meeting at which
15 they voted to remove Titova from the board, as well as terminate her from her positions as
16 Executive Director and Artistic Director. EBT's intentional and wrongful removal of Titova from
17 all three positions, including her board seat, was done in a single vote.

18 4.4 Prior to the June 5, 2024 special meeting, the board did not provide the requisite
19 notice that a purpose of the meeting would be to discuss a board member's removal. To the
20 contrary, no notice was provided to Titova in advance of the meeting that a purpose of the special
21 meeting would be to discuss a board member's removal.

22 4.5 EBT removed Titova in violation of RCW 24.03A.530(2)(b), which expressly
23 requires that a "nonprofit corporation shall give notice of any meeting of directors at which
24 removal of a director is to be considered in accordance with the articles or bylaws governing notice
25 for special meetings, but in no event less than forty-eight hours before the meeting. Such notice
26 shall state that the purpose, or one of the purposes, of the meeting is removal of a director."

1 4.6 Titova was also wrongfully removed in violation of EBT's by-laws, Article IV
2 Section 5, which only permits for-cause termination.

3 4.7 EBT had been warned about the law and nevertheless, through its directors and
4 agents, intentionally chose to proceed in violation of the law as described herein, and in breach of
5 its directors' duties and the standards of conduct required under Chapter 23.03A RCW, including
6 but not limited to RCW 24.03A.495.

7 4.8 Titova has been damaged by the wrongful termination and conduct in an amount to
8 proven at trial.

9 **V. SECOND CAUSE OF ACTION: VIOLATIONS OF WASHINGTON MINIMUM**
10 **WAGE ACT, CHAPTER 49.46 RCW**

11 5.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
12 the Paragraphs above.

13 5.2 EBT's actions constitute violations of the Washington Minimum Wage Act,
14 including but not limited to RCW 49.46.020 and RCW 49.46.130.

15 5.3 As a result of EBT's violations, Titova has been damaged in an amount to be proven
16 at trial.

17 **VI. THIRD CAUSE OF ACTION: FAILURE TO PAY WAGES OWED IN**
18 **VIOLATION OF WASHINGTON LAW**

19 6.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
20 the Paragraphs above.

21 6.2 EBT's misclassification of Titova as a contractor rather than an employee deprived
22 Titova of pay for all regular and overtime hours in violation of Washington law, including but not
23 limited to RCW 49.12.150, RCW 49.46.020, RCW 49.46.090, RCW 49.46.130, RCW 49.48.030,
24 and RCW 49.52.070.

25 6.3 EBT's failure to pay wages owed to Titova has damaged Titova, and Titova is
26 entitled to all wages, recoveries, penalties, interest, attorneys' fees and costs available under
Chapters 49.12, 49.46, 49.48 and 49.52 RCW to the maximum extent permitted by law.

1 **VII. FOURTH CAUSE OF ACTION: WILLFUL WITHHOLDING OF**
2 **WAGES IN VIOLATION OF WASHINGTON LAW**

3 7.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
4 the Paragraphs above.

5 7.2 EBT's failure to pay Titova for all compensable time was willful.

6 7.3 EBT's actions constitute willful withholding of wages in violation of RCW
7 49.52.050(2).

8 7.4 As a result, Titova is entitled to compensatory damages, double damages,
9 prejudgment interest, costs, and attorneys' fees under Washington law, including but not limited
10 to RCW 49.12.150, RCW 49.46.090, RCW 49.48.030, and RCW 49.52.070.

11 **VIII. FIFTH CAUSE OF ACTION: DECLARATORY JUDGMENT REGARDING**
12 **MISCLASSIFICATION OF AN EMPLOYEE UNDER WASHINGTON LAW**

13 8.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
14 the Paragraphs above.

15 8.2 Pursuant to RCW 7.24.020, a person whose rights are affected by a "statute,
16 municipal ordinance, contract or franchise, may have determined any question of construction or
17 validity arising under the instrument, statute, ordinance, contract or franchise and obtain a
18 declaration of rights, status or other legal relations thereunder."

19 8.3 EBT failed to properly classify Titova as an employee under Washington's
20 Minimum Wage Act and other relevant statutes.

21 8.4 Therefore, in the alternative if necessary, a declaration pursuant to RCW 7.24.020
22 should be issued that EBT failed to properly classify Titova as an employee under Washington
23 law.

24 8.5 Accordingly, Titova is entitled to all appropriate remedies therefrom, including but
25 not limited to back wages, taxes, penalties, and statutory compensation.

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1 **IX. SIXTH CAUSE OF ACTION: DECLARATORY JUDGMENT REGARDING**
2 **VIOLATION OF WASHINGTON NONPROFIT CORPORATION ACT**

3 9.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
4 the Paragraphs above.

5 9.2 Pursuant to RCW 7.24.020, a person whose rights are affected by a “statute,
6 municipal ordinance, contract or franchise, may have determined any question of construction or
7 validity arising under the instrument, statute, ordinance, contract or franchise and obtain a
8 declaration of rights, status or other legal relations thereunder.”

9 9.3 EBT’s wrongful conduct as alleged above violated the Washington Nonprofit
10 Corporation Act, Chapter 23.04A RCW, including but not limited to RCW 24.03A.530(2)(b).

11 9.4 Therefore, in the alternative if necessary, a declaration pursuant to RCW 7.24.020
12 should be issued that EBT failed to lawfully remove Titova from her positions as EBT’s Executive
13 Director, Artistic Director, and director and President of the board of directors.

14 9.5 Accordingly, Titova is entitled to all appropriate remedies therefrom, including but
15 not limited to revoking, enjoining, restraining and/or suspending EBT’s wrongful actions
16 regarding Titova and restoring Titova as a board member, President of the board, Executive
17 Director, and Artistic Director at EBT.

18 **X. SEVENTH CAUSE OF ACTION: TORTIOUS INTERFERENCE**

19 10.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
20 the Paragraphs above.

21 10.2 Ballet Academy and Titova had valid contractual relationships and/or business
22 expectancies with persons and entities as alleged herein and in connection with the provision of
23 services by Ballet Academy.

24 10.3 EBT had knowledge of these relationships.

25 10.4 EBT intentionally interfered with these relationships, inducing or causing a breach
26 or termination of the relationships or expectancies.

1 10.5 EBT interfered for an improper purpose or using improper means.

2 10.6 As a result of EBT's conduct, Ballet Academy and Titova have been damaged,
3 including through loss of students, loss of revenue, and business disruption, in an amount to be
4 proven at trial.

5 **XI. EIGHTH CAUSE OF ACTION: UNJUST ENRICHMENT**

6 11.1 Plaintiffs reallege and incorporate herein by reference the allegations contained in
7 the Paragraphs above.

8 11.2 Benefits were conferred upon EBT by Plaintiffs including but not limited to
9 Titova's time, work, know-how, money, and contacts.

10 11.3 EBT appreciated and/or had knowledge of the benefits.

11 11.4 EBT intentionally accepted and/or retained the benefits under such circumstances
12 as to make it inequitable for EBT to retain the benefits without the payment of their value.

13 11.5 As a result of EBT's conduct, Plaintiffs have been damaged in an amount to be
14 proven at trial.

15 **XII. PRAYER FOR RELIEF**

16 WHEREFORE Plaintiffs pray for relief as follows:

17 1. An order declaring that EBT failed to properly classify Titova as an employee under
18 Washington's Minimum Wage Act and other relevant statutes and ordinances;

19 2. For judgment against EBT for lost wages, benefits, and back pay;

20 3. A judgment awarding Plaintiffs compensatory and exemplary damages in an
21 amount to be proven at trial, together with prejudgment interest at the maximum rate allowed by
22 law;

23 4. An order requiring EBT to immediately cease its wrongful conduct as set forth
24 above;

25 5. An order declaring that the June 5, 2024 vote to remove Titova from her roles with
26 EBT was unlawful and void in its entirety;

1 6. An order requiring EBT to reinstate Titova to all positions from which she was
2 removed on June 5, 2024, including her positions as a director and as President of EBT's board of
3 directors;

4 7. Statutory penalties to the maximum extent permitted by law;

5 8. An award of attorneys' fees and costs to the maximum extent permitted by law,
6 including but not limited to all attorneys' fees and costs available under RCW 49.12.150, RCW
7 49.46.090, RCW 49.48.030, and RCW 49.52.070; and

8 9. All prejudgment and post-judgment interest to the maximum amount permitted by
9 law;

10 10. Leave to amend this pleading to conform to evidence discovered during the course
11 of litigation and/or the evidence at trial, including but not limited leave to amend to add additional
12 claims and/or parties;

13 11. Such other and further relief to protect Plaintiffs' rights and interests, including but
14 not limited to preliminary and/or permanent injunctive relief if necessary; and

15 12. Such other and further relief as the Court deems just, proper, or equitable.

16
17 DATED this 3rd day of December, 2025

FOSTER GARVEY PC

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19 By



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